



U.S. Customs and Border Protection

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Re: EAPA Consolidated Case No. 8112 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 8112 (EAPA Cons. 8112), U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Ribest Ribbons & Bows USA (Ribest USA) and TriMar Ribbon LLC (TriMar) (collectively, the Importers) entered merchandise covered by antidumping duty (AD) order A-570-952 and countervailing duty (CVD) order C-570-953 on narrow woven ribbons with woven selvedge (woven ribbon) into the customs territory of the United States through evasion.¹

Substantial evidence demonstrates that Ribest USA and TriMar imported Chinese-origin woven ribbon via transshipment through India. As a result, no cash deposits were applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

¹ See *Narrow Woven Ribbons With Woven Selvedge from Taiwan and the People's Republic of China: Amended Antidumping Duty Orders*, 75 Fed. Reg 56982 (September 17, 2010) (*AD Order*). See also *Narrow Woven Ribbons With Woven Selvedge from the People's Republic of China: Countervailing Duty Order*, 75 FR 53642 (September 1, 2010) (*CVD Order*) (collectively, the *Orders*).

Background & Procedural History (Pre-Interim Measures)

Allegation, Formal Receipt, and Initiation

On August 2, 2024, and August 8, 2024, Berwick Offray, LLC (the Alleger, or Berwick Offray)² filed EAPA allegations claiming that Ribest USA and Trimar, respectively, evaded the *Orders* by importing woven ribbon from China into the United States that was transshipped through India.³ On October 7, 2024, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, formally acknowledged receipt of the Alleger's two properly filed EAPA Allegations concerning evasion by the Importers, in accordance with 19 C.F.R. § 165.12(a).⁴ TRLED found the information provided in the Allegations reasonably suggested that the Importers entered covered merchandise into the customs territory of the United States through evasion.⁵ Consequently, CBP initiated investigations on October 29, 2024, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the "EAPA."⁶

According to the Allegations, TriMar and Ribest USA declared woven ribbons produced in China as a product of India. Specifically, the Alleger claimed TriMar and Ribest USA have been importing Chinese-origin woven ribbon improperly transshipped through India by Ribest Ribbon and Bows India Private Ltd. (Ribest India).⁷ Both Ribest USA and Ribest India are affiliates of Chinese company Yama Ribbons and Bows (Yama Ribbons).⁸ Ribest India is Yama Ribbon's Indian manufacturer, and Ribest USA is the U.S. branch office of Yama Ribbons.⁹ The Alleger obtained [information

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² The Alleger is a manufacturer in the United States of a domestic like product in the United States; thus, pursuant to 19 C.F.R. § 165.1(2), the Alleger meets the definition of an interested party that is permitted to submit an EAPA allegation.

³ See Letter from the Alleger, "Narrow Woven Ribbons with Woven Selvedge from the People's Republic of China: Request for Investigation under the Enforce and Protect Act," dated August 2, 2024; see also Letter from the Alleger, "Narrow Woven Ribbons with Woven Selvedge from the People's Republic of China: Request for Investigation under the Enforce and Protect Act," dated August 8, 2024 (collectively, the Allegations).

⁴ See email "EAPA 8112 & 8113: Initiation of Investigations," dated October 29, 2024.

⁵ CBP consolidated EAPA investigations 8112 and 8113 into a single investigation. See CBP's notice letter titled, "Notice of Initiation of Investigations and Interim Measures – EAPA Cons. Case 8112," dated February 3, 2025 (Notice of Initiation) at 8. See also Memoranda, "Initiation of Investigation for EAPA Case Number 8112," and "Initiation of Investigation for EAPA Case Number 8113," dated October 29, 2024.

⁶ *Id.*

⁷ See Allegations at 2.

⁸ *Id.* at Exhibit 1 and Exhibit 2.

⁹ *Id.*

¹⁰ *Id.* at 7.

Information] that Ribest India is involved in the transshipment of Chinese-origin woven ribbons.¹¹ [Information] Ribest India imports finished products from China, labels these products as made in India, and exports these products to the United States.¹² [Information].¹³

The [report] claims that Ribest India's parent company, Yama Ribbons, located in Xiamen, China, ships woven ribbon entirely produced in China to its affiliate Ribest India, and that [information].¹⁴ Yarn and/or thread are inputs used in the production of ribbon and are not subject to the *Orders*. PIERS Global Trade Analytics data indicates that the Importers have each imported from Ribest India during the period of investigation.¹⁵ [Report] also indicated that Ribest India does not have the capacity to make certain woven ribbon products in India, [information];¹⁶ therefore, [information].¹⁷ [

information].¹⁸

In assessing the basis for the Allegations, CBP found that the information submitted by the Alleger reasonably suggested that the Importers entered merchandise covered by the *Orders* into the customs territory of the United States through evasion. Specifically, the Alleger presented [information] indicating Ribest India imported covered merchandise from its parent company in China, [information], and labeled this merchandise as woven ribbon that was "Made in India."¹⁹ Further, the Alleger presented evidence that Ribest India does not have the capacity to produce certain products that it has

¹¹ *Id.* at 5.

¹² *Id.* at 7.

¹³ *Id.*

¹⁴ *Id.* at 5 and 6 and Attachment 1.

¹⁵ *Id.* at 5, 6 and 7.

¹⁶ *Id.* at 7 and Exhibit 3.

¹⁷ *Id.* at 7.

¹⁸ *Id.*

¹⁹ *Id.* at Exhibit 3.

shipped to the United States.²⁰ Commercial trade data shows that the importers imported woven ribbons from Ribest India into the United States.²¹

Post Initiation

On December 4, 2024, CBP issued CBP Form 28 (CF-28) requests for information to the Importers to determine the country of origin of certain entries, requesting various information including production records, proof of payment, raw material purchases, information to demonstrate how the raw materials consumed tie to the entry in question, and affidavits from Ribest India stating that the woven ribbon was produced at their facility in India.²²

The CF-28 responses were due on January 3, 2025, and January 4, 2025, respectively, for Ribest USA and TriMar.²³ Ribest USA requested an extension and submitted timely CF-28 responses on January 13, 2025, which contained almost all of the information requested by CBP.²⁴ TriMar did not request an extension to respond to the CF-28s and did not respond timely to the CF-28 requests. On January 24, 2025, TriMar submitted limited entry documentation (CBP entry summary form, cargo release results, export invoices and packing lists, importer security information, cargo receipt bill of lading and arrival notice) to CBP, well after the January 4 deadline.²⁵

Because of the untimeliness of the TriMar submission to CBP, CBP did not have time to fully analyze the type of products shipped; however, export invoices show that TriMar purchased several types of ribbon from Ribest India.²⁶ At that time, CBP could not determine the exact type of ribbon purchased (*i.e.*, whether it was “woven,” and therefore in scope) or if Ribest India actually produced that ribbon because TriMar did not provide fulsome responses to CBP’s questions nor were any of the requested production documents provided.²⁷ The packing list and invoice provided were insufficient to determine even the classification of the product being imported.²⁸ Furthermore, TriMar did not provide any of CBP’s requested information related to

²⁰ *Id.* at 7.

²¹ *Id.* at 6.

²² See the CF-28 requests for entries [#]9071 (Entry 9071) and [#]3452 (Entry 3452) issued to Ribest on December 4, 2024, and entries [#]8462 and [#]0595 issued to TriMar on December 4, 2024 (collectively Importers’ CF-28 Requests).

²³ *Id.*

²⁴ See Ribest USA Entry 9071 Response and Ribest USA Entry 3452 Response, dated January 13, 2025 (Ribest USA CF-28 Responses). Ribest USA did not provide any contracts or country of origin certificates. However, regarding the certificates, it stated in its responses that there were no certificates because they were not needed for the shipments.

²⁵ See TriMar documents related to Entry 8462 and Entry 0595, received on January 24, 2025.

²⁶ *Id.*

²⁷ *Id.*

²⁸ *Id.*

raw material purchases, company details, proof of payment, manufacturing and equipment capabilities, nor affidavits that the product was produced in India.²⁹ Accordingly, there is no evidence on the record that either entry contained merchandise of Indian origin, or that it was actually manufactured by Ribest India.

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence if there is reasonable suspicion that such merchandise covered by the *Order* was entered into the United States through evasion.³⁰ CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading the *Orders* entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.³¹ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 CFR § 165.24.

After evaluating the information on the record, on February 3, 2025, CBP issued its Notice of Initiation and Interim Measures.³² TRLED determined that there was reasonable suspicion that TriMar evaded the *Orders* by claiming the woven ribbon it imported into the United States was of Indian origin when it was actually of Chinese origin.³³ TRLED based its finding on the information provided in the Allegations,³⁴ the fact the CF-28 was untimely and did not provide fulsome responses to CBP's questions, and that requested production documents were not provided.³⁵ The packing list and invoice provided were insufficient to determine even the classification of the product being imported.³⁶ Furthermore, TriMar did not provide any of CBP's requested information related to raw material purchases, company details, proof of payment, manufacturing and equipment capabilities, and affidavits that the product was produced in India.³⁷

Ribest USA's CF-28 responses corroborated several elements of the Allegations (*e.g.* that Ribest India, and Yama Ribbon are affiliated and that Ribest India purchases [information

²⁹ *Id.*

³⁰ *See* 19 C.F.R. § 165.24

³¹ *See* 19 U.S.C. § 1517(a)(5).

³² *See* Notice of Initiation.

³³ *Id.*

³⁴ *See* Allegations.

³⁵ *See* TriMar documents related to Entry 8462 and Entry 0595, received on January 24, 2025.

³⁶ *Id.*

³⁷ *Id.*

] as an apparent raw material input).³⁸ However, TRLED did not find sufficient evidence to impose interim measures on Ribest USA at the time it issued the Notice of Initiation.³⁹

In accordance with 19 U.S.C. § 1517(e)(1)-(3), for TriMar, CBP suspended the liquidation of each unliquidated entry of covered merchandise that entered on or after October 29, 2024, the date of the initiation, extended the period for liquidating each unliquidated entry of covered merchandise that entered before the date of the initiation of the investigation, and took additional measures necessary to protect the revenue of the United States.

Post-Interim Measures

Requests for Information (RFIs)

On February 20, 2025, pursuant to 19 C.F.R. § 165.5, CBP sent Requests for Information (RFIs) to Ribest India and to the Importers, requesting information on Ribest India's shipments to the Importers, as well as Ribest India's production capabilities and capacities.⁴⁰ Ribest India and the Importers submitted timely RFI responses.⁴¹ In response to CBP's question in the RFI to "describe the procedures used to ensure that the correct manufacturer and country of origin is identified and the information declared to CBP is accurate," TriMar did not state any procedures in effect during the period of review but stated that [information

] ⁴² In response to this question, Ribest USA replied that it entrusted its "broker to handle all Customs-related issues."⁴³ On April 17, 2025, CBP sent a Supplemental Request for Information (SRFI) to TriMar, and on April 18, 2025, CBP sent SFRI to Ribest India and Ribest USA.⁴⁴ CBP received a timely response to the SFRI from TriMar on March 31, 2025.⁴⁵

Ribest India and Ribest USA's Non-Participation in Investigation

Between April 10, 2025 and April 28, 2025, CBP sent emails to Ribest India's counsel to propose dates for verification of the company's Indian manufacturing facility and its responses to

³⁸ See Notice of Initiation.

³⁹ *Id.*

⁴⁰ See Letter to Ribest India, "EAPA 8112-Request for Information," dated February 20, 2025 (Ribest India RFI), and Letters to Importers, "EAPA 8112 Request for Information," dated February 20, 2025 (Importer RFIs).

⁴¹ See Ribest India's RFI response, dated March 24, 2025 (Ribest India RFI Response), Ribest USA's RFI response, dated March 20, 2025 (Ribest USA RFI Response) and TriMar's RFI response dated March 31, 2025 (TriMar RFI Response).

⁴² See TriMar RFI response Part III at 12.

⁴³ See Ribest USA RFI response at Part III at 20.

⁴⁴ See Letter to TriMar, "EAPA 8112 – Supplemental Request for Information," dated April 17, 2025; and Letters to Ribest USA and Ribest India, "EAPA 8112 – Supplemental Request for Information," dated April 18, 2025.

⁴⁵ See TriMar's SFRI response dated March 31, 2025.

CBP questions and to arrange verification logistics. On April 29, 2025, Ribest India submitted a letter to CBP providing notice that it would not participate in verification in this investigation.⁴⁶ Ribest USA and Ribest India did not respond to CBP's April 18, 2025, SRFI.

Voluntary Factual Information and Written Arguments

On May 15, 2025 and May 16, 2025, respectively, the Alleger and TriMar submitted timely voluntary factual information.⁴⁷ On May 15, 2025, the Alleger submitted a request for CBP to apply adverse inferences in its determination as to evasion for both Ribest USA and TriMar due to Ribest India's refusal to participate in verification.⁴⁸ On May 23, 2025, TriMar submitted a rebuttal to the Alleger's request for CBP to apply adverse inferences.⁴⁹

Written Arguments

TriMar submitted written arguments on May 30, 2025.⁵⁰ Neither the Alleger, nor Ribest USA submitted written arguments.

TriMar's Arguments

TriMar argues it is not involved in the alleged transshipment scheme, nor could it have known of an alleged transshipment scheme. . .⁵¹ TriMar argues that "evidence clearly shows that Ribest India operates a large ribbon manufacturing facility in India."⁵² TriMar asserts that they were assured that the merchandise they ordered was manufactured at the Ribest India facility.⁵³ TriMar claims that "all shipments of the Products" can be traced directly from Ribest India's manufacturing facility to TriMar, citing affidavits from its own Director of Global Supply chain, a Ribest India official, and its SRFI response.⁵⁴ TriMar notes that it cooperated fully with this

⁴⁶ See Ribest India's Letter, "EAPA Investigation #8112; Decline to Participate in Verification," dated April 29, 2025.

⁴⁷ See Berwick Offray's letters, "05-15-2025-Berwick Offray-Declaration-8112," "05-15-2025-Berwick Offray-Declaration2-8112," "05-15-2025-Berwick Offray-Declaration3-8112," dated May 15, 2025; and TriMar's letter, "EAPA Investigation #8112; Submission of Voluntary Information for TriMar Ribbon, LLC," dated May 16, 2025.

⁴⁸ See Letter from the Alleger, "EAPA 8112 – Request for Applications of Adverse Inferences," dated May 15, 2025.

⁴⁹ See TriMar's letter, "EAPA Investigation #8112 TriMar LLC's Rebuttal to Petitioner's Request for Adverse Inference," dated May 23, 2025.

⁵⁰ See TriMar's letter, "EAPA Investigation #8112; TriMar LLC's Written Arguments," dated May 30, 2025 (TriMar Written Argument) at 1.

⁵¹ *Id.* at 1.

⁵² *Id.*

⁵³ *Id.*

⁵⁴ *Id.* at 2, Exhibit 1 and Exhibit 2.

investigation, which makes imposition of adverse inference against TriMar arbitrary and improper.⁵⁵

TriMar notes that the Initiation Memorandum named TriMar Ribbon Inc. rather than TriMar Ribbon LLC as the subject importer.⁵⁶ TriMar argues that this “procedural defect” warrants the dismissal of TriMar from this proceeding.⁵⁷

TriMar asserts that it “exercised reasonable care and due diligence in its import transactions” and there is no evidence that TriMar was party to any alleged transshipment scheme between Ribest India and its Chinese parent company, Yama Ribbons.⁵⁸ TriMar argues that speculation about what “TriMar should have known is insufficient to meet the substantial evidence standard required for an affirmative determination of evasion.”⁵⁹ TriMar’s orders were for products Ribest India presented as being within its manufacturing capabilities.⁶⁰

CBP Position

Regarding TriMar’s argument that this investigation improperly targets TriMar LLC since the allegation named a different legal entity, TriMar Inc., CBP considers this to be a minor clerical error that does not change TriMar’s status as a legitimate subject of investigation. TriMar does not dispute that it is an importer of woven ribbon into the customs territory of the United States and, therefore, it is subject to investigation by CBP.

TriMar argues it is an innocent party who was acting in good faith. But under the EAPA,⁶¹ CBP needs only determine, with substantial evidence, that evasion occurred regardless of the importer’s state of mind. TriMar also claims that it could not have known of a transshipment scheme.⁶² CBP notes that EAPA does not have a knowledge requirement for evasion as defined under 19 C.F.R. § 165.1, nor is there any requirement that an importer know of the material or false statement.

Regarding application of adverse inferences, CBP’s application of adverse inferences with respect to TriMar is discussed below. But to respond to TriMar’s specific arguments, TriMar claims that evidence “clearly shows” that Ribest India operates a large ribbon manufacturing facility in India and said that it was given assurances that the merchandise it ordered was

⁵⁵ *Id.* at 4.

⁵⁶ *Id.*

⁵⁷ *Id.* at 8.

⁵⁸ *Id.* at 6 and 7.

⁵⁹ *Id.* at 7.

⁶⁰ *Id.*

⁶¹ See Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.

⁶² *Id.*

manufactured in India.⁶³ Without verification, CBP cannot confirm Ribest India's capacity to produce ribbon, nor the origin of the ribbon that TriMar purchased.

TriMar's argument that it cooperated with the investigation, and therefore, imposition of adverse inferences would be "arbitrary and improper"⁶⁴ is unsupported by either the EAPA statute or EAPA regulations. The EAPA statute and EAPA regulations contain no suggestion that an adverse inference used with respect to a foreign manufacturer or exporter cannot affect a cooperating importer. Instead, the EAPA statute states that an adverse inference may be used against a foreign producer or exporter "without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought by the Commissioner, such as import or export documentation."⁶⁵

The adverse inference in this case is that all the woven ribbon that Ribest India exported during the POI is of Chinese origin. As such, once the inference has been applied to the woven ribbon, that inference remains regardless of the woven ribbon's change in geographic location or ownership. Therefore, the inference would necessarily impact downstream importers.

Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion." Evasion is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise."⁶⁶

Adverse Inferences

Because Ribest India refused to participate in verification, and because Ribest India and Ribest USA did not respond to the SFRI, CBP's ability to obtain information for its investigation was impeded significantly. EAPA's regulations at 19 C.F.R. § 165.6(a) state that if "the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference

⁶³ See TriMar Written Argument.

⁶⁴ *Id.*

⁶⁵ See 19 U.S.C. § 1517(c)(3)(B).

⁶⁶ See 19 C.F.R. § 165.1.

Because Ribest India refused to participate in verification and both Ribest India and Ribest USA did not reply to the SRFI, CBP finds that neither Ribest India nor Ribest USA cooperated and complied with CBP's investigation to the best of their abilities.

As such, CBP is drawing inferences adverse to the interests of Ribest India, Ribest USA and TriMar from facts otherwise available on the record and relying on information submitted to CBP, including, but not limited to:

1. Ribest India and Ribest USA's parent company is Chinese company Yama Ribbons & Bows.⁶⁸
2. The Importers' entry documents did not include certificates of origin, but showed country of origin for raw materials was China.⁶⁹
3. The Allegations included a report from [redacted] company name, information [redacted].⁷⁰
4. The [redacted] report [redacted] also noted that Ribest India does not have the capacity to make certain products in India.⁷¹
5. Payment information for Ribest USA Entry Number [redacted] # [redacted] 3452 shows payments between Ribest USA to Ribest India going to bank accounts in Xiamen, China.⁷²

⁷² See Ribest USA RFI Response at Exhibit III-10.3.

6. Neither TriMar or Ribest USA reported robust internal procedures for determining country of origin.
7. The Alleger submitted signed declarations from industry officials in Asia with knowledge of [name] transshipment scheme to “intentionally” “avoid payment of antidumping duties and that [name] has taken action to “conceal evidence of transshipment.”⁷³

CBP is relying on this information to conclude that Ribest India does not has sufficient capacity in India to produce the woven ribbon sold to the Importers, and is instead importing Chinese-origin woven ribbon to India from its Chinese parent company. Therefore, CBP finds that there is substantial evidence that Chinese-origin woven ribbon was imported by Ribest USA and TriMar into the United States during the POI by means of transshipment through India, and that said woven ribbon is covered by the *Orders* on woven ribbon from China. Consequently, the required cash deposits were not collected on the merchandise as of the onset of this investigation.⁷⁴

Actions Taken Pursuant to the Affirmative Determination of Evasion

Considering CBP’s determination that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries subject to this investigation until instructed to liquidate these entries. For those entries previously extended in accordance with the Notice of Initiation, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP will also evaluate the Importers’ continuous bonds in accordance with CBP’s policies and may require single transaction bonds as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Kristina Horgan
Acting Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁷³ See Alleger’s submissions, “05-15-2025-Berwick Offray-Declaration-8112,” “05-15-2025-Berwick Offray-Declaration2-8112,” and “05-15-2025-Berwick Offray-Declaration3-8112,” submitted May 15, 2025.

⁷⁴ The rates applicable to these entries are the China-wide entity rate for the *Orders* on woven ribbon from China, unless otherwise specified by the Department of Commerce.